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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL, Plaintiff, v. **THE COUNTY OF CLACKAMAS at el,** *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,* Defendant(s),	**Case No.: 3:24-cv-839** AMENDED COMPLAINT JURY TRIAL REQUESTED 42 U.S.C 1983 VIOLATIONS OF THE FIRST, FOURTH, FIFTH, SIXTH SEVENTH, AND FOURTEENTH AMENDMENTS *(with emphasis in the FOURTH, SEVENTH, and FOURTEENTH AMENDMENTS)*

AMENDED COMPLAINT

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II. INTRODUCTION

1

Tyler Allen Lofall, Plaintiff in this action, submits this Amended Complaint against the following defendants: Clackamas County, West Linn Police Department, Officer Dana Gunnarson, Officer Catlin Blyth, Clackamas County Sheriff's Department, Clackamas County Jail, Deputy District Attorney Rebecca Portlock, and John Does 1-2.

2

This case arises from a series of actions beginning in March 2022, involving false arrest, malicious prosecution, unlawful detention, denial of adequate medical care, and various other constitutional violations committed by the defendants under color of state law. These actions resulted in the Plaintiff suffering ongoing harm, including the loss of an **Assignment of Benefits valued at $111,943.56** and the dismissal of a **counterclaim valued at $32,599.50** in a separate legal matter, both of which occurred due to the Defendants' interference and obstruction.

3

The Plaintiff initially filed separate claims in state and federal courts. However, the Plaintiff's federal claim, which included the State of Oregon, was dismissed due to sovereign immunity. The Plaintiff now amends the complaint to remove the State of Oregon while maintaining the claims against the remaining defendants. The Plaintiff seeks to consolidate all claims under federal jurisdiction to ensure that the full extent of the constitutional violations and damages can be addressed in a single proceeding.

4

Furthermore, Plaintiff requests the Court toll the statute of limitations due to the tolling provided by memoranda issued during the state of emergency in 2022, the ongoing nature of the litigation in state court, and the discovery of new harms in May 2024. The Plaintiff argues that the delay in filing these claims, caused by ongoing legal resistance from the Defendants, should not preclude a fair adjudication of his claims. The Plaintiff asserts that despite these efforts, he has consistently acted in good faith to pursue his claims and deserves his day in court to present the facts and seek redress for the harms suffered.

5

The Plaintiff asserts violations of his **Fourth, Fifth, Seventh, and Fourteenth Amendment** rights, as well as claims under **42 U.S.C. § 1983**, including unlawful detention, malicious prosecution, conspiracy to deprive civil rights, failure to train, and destruction of property/claim rights. These claims are supported by substantial evidence, including the Plaintiff's **Declaration Narrative**, which is incorporated herein as the **Factual Background**.

6

This narrative details the series of events and systemic failures leading to the harms suffered by the Plaintiff, and the narrative demonstrates the intentionality and negligence of the Defendants in violating the Plaintiff's rights.

7

The Plaintiff requests this Court exercise its jurisdiction over all claims, including those against the **West Linn Defendants**, while maintaining the option to separate claims involving the West Linn Defendants if necessary. The Plaintiff contends that the interconnected nature of the claims makes it imperative that they be heard together to ensure justice is served. Should the federal court decline jurisdiction over

specific parties, the Plaintiff requests that those parties be severed and removed from the complaint as needed.

Additional Legal Context

The Plaintiff's amended complaint includes claims under the following legal provisions:

- **42 U.S.C. § 1983**: Civil rights violations, including unlawful detention, malicious prosecution, and denial of equal protection.
- **Fourth Amendment**: Protection against unreasonable searches and seizures, including false arrest and unlawful detention.
- **Fifth Amendment**: Protection against deprivation of life, liberty, or property without due process of law.
- **Seventh Amendment**: Right to a civil trial, which was unjustly denied to the Plaintiff.

- **Fourteenth Amendment**: Guarantee of due process and equal protection under the law, which the Plaintiff asserts were violated through the systemic actions of the Defendants.

III. JURISDICTION AND VENU

8

This Court possesses federal-question jurisdiction over this matter pursuant to 28 U.S.C. § 1331, as the action involves claims arising under the Constitution and laws of the United States.

9

Specifically, the claims are grounded in 42 U.S.C. § 1983, concerning alleged violations of the Plaintiff's civil rights as protected under federal law. .

10

Venue is appropriately established in this District under 28 U.S.C. § 1391. The justification for this is Multifaceted: firstly, a substantial portion of the events or omissions that form the basis of the claims transpired within this District; secondly, the Defendants either reside or can be found within this District, Moreover, as time ticked away, more alike actions revealed their self, and Lofall being ensnared with additional

difficulties upon his unlawful arrest. With the state creating the maximum delays the federal government is the only one who can simply have the right to correct the violations the state failed to do so, is refusing to do so, and flat out cannot deny doing so.

11

The State, to judge its own wrong doing, would be one thing if It was correcting its self, but its not, especially when its actions and those representing the state are striving for procedural unfairness as surpassing its duty to Constitutional right protections, further cementing the appropriateness of this venue.

12

Under Article III, Section 2 of the United States Constitution, the federal judiciary is vested with the authority to adjudicate all cases in law and equity arising under the Constitution, our laws, and treaties of the United States. This includes cases where a citizen asserts a violation of rights granted by the federal constitution against their state, particularly when seeking injunctive relief. Such cases inherently "arise under this Constitution," hence falling within the ambit of federal jurisdiction.

13

Given the context of this case – where the state court has failed to rectify the issue, despite being afforded the opportunity to do so – the federal court's intervention becomes imperative. The state court's inaction, characterized by procedural delays, risks eclipsing the statute of limitations and denies the Plaintiff the opportunity for redress. This federal court, therefore, is not only appropriate but necessary to adjudicate the claims presented, ensuring the enforcement of constitutional rights and the provision of timely justice.

IV. PARTIES

Plaintiff

Tyler Allen Lofall

14

A legally blind individual, residing in Hillsboro, Oregon, and a pro se litigant. Plaintiff has suffered extensive constitutional violations, including unlawful detention, malicious prosecution, denial of due process, and deprivation of his civil rights under the U.S. Constitution. Plaintiff was subjected to multiple harms by the Defendants, including financial damages resulting from the loss of an Assignment of Benefits valued at $111,943.56 and a counterclaim of $32,599.50. Plaintiff also endured emotional, physical, and financial hardships caused by systemic

failures within Clackamas County and the abuse of power by various Defendants.

Defendants

Clackamas County

15

A governmental entity responsible for maintaining law enforcement, judicial processes, and jail operations within Clackamas County, Oregon. Clackamas County is responsible for the actions of its employees and officials, including the Sheriff's Department and judicial personnel, who engaged in systemic failures that violated Plaintiff's constitutional rights.

16

Claims: Violation of the **Fourth, Fifth, Seventh, and Fourteenth Amendments**, **42 U.S.C. § 1983**, Failure to Train, Malicious Prosecution, Destruction of Property/Claim Rights, Denial of Equal Protection.

West Linn Police Department

17

A law enforcement agency within West Linn, Oregon. The Department, along with its officers, engaged in malicious prosecution, unlawful detention, and conspiracy to deprive Plaintiff of his civil rights through unconstitutional actions.

18

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Failure to Train, Destruction of Property/Claim Rights, Denial of Equal Protection.

Officer Dana Gunnarson

19

A police officer employed by the West Linn Police Department. Officer Gunnarson participated in Plaintiff's unlawful detention and malicious prosecution. Officer Gunnarson acted in conspiracy with other officers and officials to deprive Plaintiff of his civil rights.

20

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Unlawful Detention, Malicious

Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights.

Officer Catlin Blyth

21

A police officer employed by the West Linn Police Department. Officer Blyth was involved in the unlawful detention and malicious prosecution of Plaintiff and participated in the conspiracy to deprive Plaintiff of his constitutional rights.

22

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights.

Clackamas County Sheriff's Department

23

The Sheriff's Department operates under the authority of Clackamas County. The department failed to train its staff adequately, resulting in Plaintiff's false imprisonment, deprivation of adequate medical care, and failure to protect his constitutional rights.

24

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Failure to Train, Denial of Adequate Medical Care, False Imprisonment.

Clackamas County Jail

25

A correctional facility operated by Clackamas County. Jail personnel contributed to the violation of Plaintiff's rights by failing to provide adequate medical care and continuing Plaintiff's unlawful detention.

26

Claims: Violation of the **Fourteenth Amendment**, **42 U.S.C. § 1983**, Failure to Train, Denial of Adequate Medical Care, False Imprisonment.

Deputy District Attorney Rebecca Portlock

27

Deputy District Attorney Portlock engaged in malicious prosecution and conspired with other defendants, including West Linn Police Department officers, to deprive Plaintiff of his civil rights. Her

actions contributed to Plaintiff's unlawful detention and denial of due process.

28

Claims: Violation of the **Fourteenth Amendment**, **42 U.S.C. § 1983**, Malicious Prosecution, Conspiracy to Deprive Civil Rights.

John Does 1-2

29

Unknown individuals whose actions contributed to the conspiracy to deprive Plaintiff of his civil rights, unlawful detention, and the deprivation of due process. Their specific identities will be discovered through litigation.

30

Claims: Violation of the **Fourth and Fourteenth Amendments**, **42 U.S.C. § 1983**, Conspiracy to Deprive Civil Rights, Malicious Prosecution.

Non-Party Individuals

Judge Steel

31

A Clackamas County judge who presided over critical events in Plaintiff's case, where collusion was evidenced between Plaintiff's attorney advisor and the prosecuting attorney. Judge Steel is not named as a defendant but was a key figure in conversations highlighting the systemic failures of the Clackamas County Judiciary.

Ruben Medina

32

Plaintiff's court-appointed attorney advisor. Medina acted in concert with prosecutors, contributing to the systemic obstruction of justice and the deprivation of Plaintiff's constitutional rights. He is not a defendant but played a significant role in the events giving rise to Plaintiff's claims.

Macy Galla

33

The alleged victim and primary witness in the underlying harassment case, Macy Galla was leveraged through threats to her children's custody to make false claims against Plaintiff. She is not a

defendant but her involvement is crucial to understanding the malicious prosecution and systemic abuses that occurred.

Joseph McDonald (AOB)

34

Attorney involved in the separate legal matter regarding Plaintiff's **Assignment of Benefits**. McDonald's handling of the case, in collusion with other parties, resulted in the loss of the Assignment of Benefits valued at $111,943.56. McDonald is not named as a defendant but his actions are relevant to Plaintiff's financial harm.

Brook Woods (AOB)

35

Attorney for the heirs involved in the separate legal matter regarding Plaintiff's Assignment of Benefits. Woods's handling of the case resulted in Plaintiff's financial loss, contributing to the overall harm.

Clackamas County Judiciary

36

The judiciary of Clackamas County is not named as a defendant, but its actions and systemic failures, including the denial of

Plaintiff's constitutional rights and the allowance of collusion between judges and attorneys, are central to this case.

V. FACTUAL BACKGROUND

37

Macy's Property Destruction (March 4th-6th 2022): Macy smashed several windows in Plaintiff's residence, soaked electronics with a hose, and poured flour on his belongings during a mental health episode. The temperature dropped to into the low 20's°F, leaving the basement exposed to freezing weather.

38

WLPD's Failure to Act (March –,): Plaintiff called West Linn Police multiple times regarding Macy's ongoing property destruction. Despite witnessing the damage and hearing Plaintiff's pleas for assistance, the officers took no protective action .

39

Hammer Attack by Macy (March ,): Macy attacked Plaintiff with a hammer, which he managed to defend against. Despite this, officers on the scene failed to arrest her or investigate the matter .

40

Gasoline Incident Intervention (March ,): Officer Goode intervened when Macy purchased five gallons of gasoline and threatened to burn down Plaintiff's home. This posed an immediate and serious risk, yet no further protective actions were taken .

41

Unlawful Arrest on March , : Without probable cause, Officers Dana Gunnarson and Catlin Blyth arrested Plaintiff at his residence within minutes of their arrival, despite clear evidence of Macy's aggression. The officers disregarded exculpatory facts .

42

Fabrication of Charges (March ,): Officers relied solely on Macy's manipulated account and ignored physical evidence that could have exonerated Plaintiff, arresting him on baseless harassment charges .

43

Failure to Protect Property (March ,): During the arrest, the officers failed to secure Plaintiff's property, leaving it exposed to further damage. His belongings, including tools and electronics, were severely damaged(

44

Denied Access to Law Library (March –July ,): While detained, Plaintiff was repeatedly denied access to the jail's law library for up to nine consecutive days. This denial crippled his ability to prepare his legal defense(

45

COVID-19 Exposure in Jail (April–June): Jail staff intentionally housed Plaintiff with COVID-19 positive inmates, leading to his infection. This exposure occurred due to negligent management of health protocols.

46

Contracting COVID- (June): Plaintiff contracted COVID- due to being housed with infected inmates. His grievances about unsafe conditions were ignored by jail staff, exacerbating his medical and legal struggles (

47

Denied Medical Care (April–July): Plaintiff was denied his corrective lenses during detention, leaving him effectively blind and unable to participate in his legal defense (

48

Repeated Grievance Denials (May –July): Plaintiff's numerous grievances concerning unsafe conditions, denied medical care, and blocked access to legal resources were systematically ignored by jail staff (

49

Suppression of Exculpatory Evidence (March–July): Officers and the DA's office repeatedly suppressed exculpatory evidence that would have cleared Plaintiff, including witness testimony and photographic evidence of Macy's destructive actions .

50

Macy's Recantation in Court (June ,): Macy admitted in open court that Plaintiff had not committed any crimes, contradicting the DA's claims. Despite this, her testimony was limited by the court .

51

Evidence Concealment by DA Rebecca Portlock (June): DA Portlock continued to suppress critical evidence despite knowing that Macy's testimony was false, prolonging Plaintiff's prosecution .

52

Unlawful Detention Beyond Release Date (July 1st till July 8th): Plaintiff was ordered to be released on July , , yet jail staff unlawfully held him for an additional week without any legal justification(

53

Destroyed Legal Documents (June ,20, 2022): Jail staff deliberately deleted of Plaintiff's legal files during a lockdown, severely hindering his ability to prepare his defense.

54

Re-Arrest After Bail (May ,): After being bailed out by Macy, Plaintiff was re-arrested on the same charges, violating his rights and subjecting him to double jeopardy

55

Property Mismanagement (May): While Plaintiff was in jail, his car was given away and trailers containing his personal belongings were destroyed. These actions led to further financial loss .

56

Police Bias and Discrimination (March ,): Officer Gunnarson displayed clear bias, siding with Macy and manipulating

evidence to frame Plaintiff as the aggressor. This reflected a pattern of discriminatory investigation (

57 .).

Denial of Due Process (April–July): Plaintiff was denied access to crucial discovery materials and was never provided the evidence necessary for his defense. His requests for discovery were ignored .

58

Judicial Misconduct (June ,): DA Rebecca Portlock, court-appointed advisor Rubin Medina, and Judge Steele falsely claimed that Plaintiff had tested positive for COVID- to delay his trial and stack additional charges .

59

Financial Loss from Property Destruction (March –,): Plaintiff lost over $ in property and financial opportunities due to Macy's actions and the officers' failure to protect his belongings

60

Hypothermia from Negligence (March ,): After Macy shut off the power and soaked Plaintiff's belongings, Plaintiff experienced

hypothermia due to the freezing temperatures and lack of protection from the elements(

61

Emotional Trauma (March–July): The repeated violations of Plaintiff's rights, wrongful arrest, and prolonged detention caused him significant emotional distress, leading to long-term psychological harm (

62

Judicial Bias and Corruption (June): The court displayed bias by denying Plaintiff the opportunity to challenge the charges against him effectively. DA Portlock colluded with the court to obstruct justice (

63

Obstruction of Legal Remedies (April–July): Plaintiff's legal claims were systematically blocked due to delays, suppressed evidence, and denial of access to legal materials(

64

False Criminal Charges (March–July): Despite the clear lack of evidence, Plaintiff was continuously charged with false crimes to prolong his detention and deny him his rights(

65

Failure to Address Property Claims (March –July): Plaintiff's property destruction claims were ignored by WLPD, resulting in the loss of valuable items, including tools and work files .

66

Reckless Endangerment by Officers (March): Officers allowed Macy to continue threatening Plaintiff's life and property, failing to intervene in a situation that clearly posed imminent danger(

67

VI. PROBABLE CAUSE AND QUALIFIED IMMUNITY

Argument to Defeat Qualified Immunity and Lack of Probable Cause

1. Introduction

68

Plaintiff, Tyler Allen Lofall, brings this argument to establish that the Defendants—West Linn Police Department (WLPD) officers Dana Gunnarson and Catlin Blyth, Clackamas County Jail staff, and District Attorney Rebecca Portlock—violated clearly established constitutional rights. Through their actions, they engaged in an unlawful arrest, deliberately ignored exculpatory evidence, conspired to manipulate

the legal process, and subjected Plaintiff to cruel and unusual punishment. The Defendants' claims to qualified immunity are invalid as they violated Plaintiff's Fourth, Eighth, and Fourteenth Amendment rights in a manner that no reasonable officer or prosecutor could believe was lawful.

2. Violation of Clearly Established Constitutional Rights

A. Unlawful Arrest and Lack of Investigation

69

On March 6, 2022, Plaintiff was unlawfully arrested by Officers Dana Gunnarson and Catlin Blyth within eight minutes of their arrival at the scene. During this brief period, the officers failed to conduct any meaningful investigation or question Plaintiff. Instead, they relied on the manipulated account provided by Macy, despite her erratic behavior and known mental instability. No reasonable officer would have believed that arresting Plaintiff based on such unreliable information was lawful, especially given the presence of exculpatory evidence, including witness statements and video evidence showing Macy as the aggressor.

70

The rushed arrest, absence of an investigation, and the failure to question Plaintiff are clear violations of the Fourth Amendment's protections against unreasonable seizures. The officers' failure to obtain probable cause before making the arrest is further demonstrated by their refusal to document key evidence that could have exonerated Plaintiff.

B. Ignoring Exculpatory Evidence

71

Defendants acted with deliberate bias in presenting the facts of the case. Despite multiple reports of Macy's violent behavior, including an attack with a hammer and repeated property destruction, the WLPD allowed Macy to remain at the scene and continue her assaults on Plaintiff for three days in a row. The officers failed to document these incidents or take any protective actions against Macy, showing clear favoritism.

72

Furthermore, the loss of body camera footage, which would have provided critical evidence in favor of Plaintiff, suggests deliberate manipulation or negligence. This suppression of evidence violated Plaintiff's due process rights under the Fourteenth Amendment and constitutes malicious intent by Defendants to deprive Plaintiff of a fair defense.

3. Collusion Between the DA and Attorneys

73

The District Attorney's Office, led by DA Rebecca Portlock, engaged in collusion with Plaintiff's court-appointed attorneys, conspiring to withhold evidence and manipulate the judicial process. This collusion is evident in the June 24, 2022 transcript, where Macy, the state's key witness, recanted her testimony and accused the DA of lying about key facts in the case. Macy stated on the record that she never wanted to press charges and that the allegations against Plaintiff were based on half-truths fabricated by the DA.

74

Further evidence of collusion is found in the DA's false statements to the court that Plaintiff had tested positive for COVID-19. The DA and Plaintiff's attorneys deliberately removed Plaintiff from the courtroom, lied to the judge, and canceled the trial based on fabricated health concerns. This act of manipulation violated Plaintiff's constitutional right to be present during his trial and to confront witnesses, further undermining the credibility of the charges against him.

75

No reasonable prosecutor or attorney could believe that such manipulation and deceit in a criminal case is lawful. The DA's actions, in

concert with Plaintiff's attorneys, represent a clear violation of Plaintiff's Sixth Amendment rights to a fair trial.

4. Lack of Probable Cause

76

Probable cause requires that officers possess sufficient evidence to believe that a crime has been committed. In Plaintiff's case, there was no credible evidence to support the harassment charges for which he was arrested. The officers relied solely on the statements of Macy, a witness with a documented history of mental instability, drug use (she was caught with methamphetamine in court), and violent outbursts. Furthermore, Macy's recantation in court made it clear that she did not believe Plaintiff had committed any crime.

77

Macy's testimony was unreliable from the start, and the officers' refusal to consider other evidence, such as video footage of Macy destroying property, further illustrates that they lacked probable cause to arrest Plaintiff. The selective use of facts and deliberate omissions in the police reports demonstrate that the officers acted with malicious intent, fabricating charges to justify an unlawful arrest.

5. Failure to Address Violations of Rights During Detention

78

While in custody, Plaintiff's constitutional rights were repeatedly violated by jail staff. The Clackamas County Jail failed to provide Plaintiff with essential medical care, including access to his corrective lenses, leaving him effectively blind throughout his detention. The jail staff also exposed Plaintiff to COVID-19 by housing him with infected inmates, despite knowing the risks. These actions represent a clear violation of Plaintiff's Eighth Amendment right to be free from cruel and unusual punishment.

79

Furthermore, the jail staff unlawfully detained Plaintiff beyond his court-ordered release date. Despite a clear order for his release on July 1, 2022, Plaintiff was held for an additional week without any legal justification, constituting false imprisonment. These violations of Plaintiff's rights demonstrate a pattern of deliberate indifference by the Defendants to Plaintiff's constitutional protections.

6. Municipal Liability Under Monell

80

West Linn Police Department and Clackamas County are liable under Monell because their actions were part of a broader policy or custom of deliberate indifference to constitutional violations. The officers

and jail staff involved in Plaintiff's case acted in accordance with this policy of ignoring complaints, failing to investigate thoroughly, and suppressing evidence. Their failure to protect Plaintiff's rights was not an isolated incident but rather part of a systemic failure to train and supervise employees adequately.

81

The lack of training and oversight provided by West Linn and Clackamas County resulted in multiple constitutional violations, including unlawful arrest, false imprisonment, and deliberate indifference to medical needs. This failure to train and the deliberate manipulation of the judicial process by the DA's office demonstrate that the municipality's policies were the moving force behind the violations of Plaintiff's rights.

7. Conclusion

82

Defendants' actions cannot be shielded by qualified immunity because they violated clearly established constitutional rights that no reasonable officer or prosecutor could have believed were lawful. The unlawful arrest, suppression of exculpatory evidence, collusion in the courtroom, and deliberate indifference to Plaintiff's health and legal rights all point to a gross abuse of power. Furthermore, the absence of probable cause and the manipulation of legal proceedings show that the Defendants acted with malicious intent, not in good faith.

83

West Linn Police Department and Clackamas County are also liable under Monell for their failure to train officers and maintain policies that protect the constitutional rights of individuals under their jurisdiction. Plaintiff's rights were systematically violated by Defendants, and they must be held accountable for the harm caused.

84

Plaintiff respectfully requests that this Court deny Defendants' claims of qualified immunity and find that there was no probable cause to justify Plaintiff's arrest and detention.

VII. CLAUSES OF ACTION

First Cause of Action: Unlawful Detention

Defendants Responsible:
Clackamas County,
West Linn Police Department,
Officer Dana Gunnarson,
Officer Catlin Blyth

85

Plaintiff alleges here with the same force and effect as all allegations herein. On March , , Defendants, acting under color of state law, unlawfully detained Plaintiff without probable cause. The arrest occurred

despite no criminal activity, with Defendants ignoring key evidence and witness statements in Plaintiff's favor.

86

Plaintiff alleges that this detention violated his Fourth Amendment rights against unreasonable seizures. Defendants knowingly disregarded exculpatory evidence and fabricated claims to justify the arrest, causing Plaintiff emotional and financial distress.

87

Plaintiff alleges here with the same force and effect as all allegations herein. Defendants were acting in their official capacity as West Linn police officers and were performing their duties under state authority at the time of the incident. Therefore, their actions were taken under color of state law.

88

As agents of the state, Defendants' unlawful actions directly resulted in the violation of Plaintiff's constitutional rights. Their abuse of power under state law constitutes grounds for liability under U.S.C. § .

Second Cause of Action: Malicious Prosecution

Defendants Responsible:

Clackamas County,

West Linn Police Department,
Officer Dana Gunnarson,
Officer Catlin Blyth

89

Plaintiff alleges here with the same force and effect as all allegations herein. Defendants initiated criminal proceedings against Plaintiff without probable cause. They intentionally pursued charges, knowing there was no credible evidence of a crime committed by Plaintiff.

90

The Defendants acted with malice, fabricating evidence and withholding exculpatory information. This led to Plaintiff being wrongfully prosecuted, resulting in emotional distress, financial harm, and reputational damage.

91

Plaintiff alleges here with the same force and effect as all allegations herein. Despite the lack of probable cause, Defendants continued the prosecution in bad faith, using the legal system to harass Plaintiff without justification.

92

The proceedings ended in Plaintiff's favor, with all charges dismissed, demonstrating that there was no valid legal basis for the

prosecution. Plaintiff suffered deprivation of liberty and severe damages due to this malicious prosecution.

Third Cause of Action: Conspiracy to Deprive Civil Rights

Defendants Responsible:

Clackamas County,

West Linn Police Department,

Officer Dana Gunnarson,

Officer Catlin Blyth

93

Plaintiff alleges here with the same force and effect as all allegations herein. Defendants, acting in concert with each other and other officials, conspired to deprive Plaintiff of his constitutional rights by fabricating evidence, ignoring exculpatory information, and continuing malicious prosecution without probable cause.

94

. Plaintiff further alleges that this conspiracy involved coaching witnesses to provide false testimony and deliberately misrepresenting facts to advance the unlawful prosecution. Defendants' actions were carried out with a shared objective to violate Plaintiff's rights under the Fourth and Fourteenth Amendments.

95

. Plaintiff alleges here with the same force and effect as all allegations herein. Despite knowing that their actions were unlawful, Defendants continued to coordinate efforts to deprive Plaintiff of due process. These acts of conspiracy led to Plaintiff being wrongfully detained and prosecuted, causing significant harm to his liberty and reputation.

96

. Plaintiff alleges that the conspiracy was carried out under color of state law, with Defendants knowingly abusing their positions of power. As a result, Plaintiff suffered both emotional and financial damage due to the continued legal manipulation and false charges brought against him.

Fourth Cause of Action: Failure to Prevent Harm

Defendants Responsible:

Clackamas County,
West Linn Police Department,
Officer Dana Gunnarson,
Officer Catlin Blyth

97

Plaintiff alleges here with the same force and effect as all allegations herein. From March to March , , Defendants were repeatedly informed of the ongoing destruction of Plaintiff's property by Macy, including flooding, smashing windows, and damaging electronic devices.

Despite being aware of this escalating situation, Defendants failed to intervene or prevent further harm.

98

. Despite multiple reports and visible signs of damage, Defendants took no meaningful action to protect Plaintiff's property or prevent the continuous attacks, showing deliberate indifference to the risk of harm. As a result, Plaintiff suffered significant financial losses, emotional distress, and physical discomfort due to the failure to act.

99

Plaintiff alleges here with the same force and effect as all allegations herein. On March , , Macy threatened to set fire to Plaintiff's home by purchasing gasoline, yet Defendants failed to prevent her from causing further damage or arrest her for the threats. This failure to act allowed the situation to escalate, resulting in additional property damage and emotional trauma for Plaintiff.

100

Defendants' inaction directly led to continued destruction of Plaintiff's property and exposure to unsafe conditions, including hypothermia caused by the loss of heating. This conduct amounts to a failure

to prevent foreseeable harm despite having actual knowledge of the risks involved.

Fifth Cause of Action: Cruel and Unusual Punishment

Defendants Responsible:

Clackamas County,
West Linn Police Department,
Officer Dana Gunnarson,
Officer Catlin Blyth,
Clackamas County Jail Staff

101

Plaintiff alleges here with the same force and effect as all allegations herein.

102

While incarcerated, Plaintiff was denied access to his corrective lenses, leaving him effectively blind. Despite multiple requests, Defendants failed to provide any assistance, causing physical pain and preventing him from accessing the courts or participating in his own defense.

103

Defendants also exposed Plaintiff to COVID- by negligently mixing infected and uninfected inmates. This resulted in Plaintiff contracting the virus, further exacerbating his health issues. Defendants

showed deliberate indifference by failing to implement proper health protocols.

104

Plaintiff alleges here with the same force and effect as all allegations herein. In addition to medical neglect, Plaintiff was denied access to the law library, obstructing his ability to file essential legal documents. This systematic deprivation of Plaintiff's rights constitutes cruel and unusual punishment.

105

Defendants' actions were part of a broader pattern of reckless disregard for Plaintiff's health and rights, causing significant physical and emotional harm. Their failure to provide medical care and protect Plaintiff from illness and legal obstruction violated Plaintiff's rights under the Eighth and Fourteenth Amendments.

106

This draft addresses the key elements of cruel and unusual punishment with clear, concise allegations based on the factual background provided. Let me know if you'd like further adjustments or to move on to the next section! ✨

Sixth Cause of Action: False Imprisonment

Defendants Responsible:

Clackamas County

Jail Staff

107

Plaintiff alleges here with the same force and effect as all allegations herein.

108

On July 1st, 2022 the court ordered Plaintiff's release from custody. Despite this clear order, Defendants at the Clackamas County Jail unlawfully held Plaintiff for an additional week without any legal justification.

109

Defendants intentionally or negligently ignored the court's release order, causing Plaintiff to suffer further unlawful detention, emotional distress, and harm to his personal and professional life. This extended confinement constitutes false imprisonment.

110

Plaintiff alleges here with the same force and effect as all allegations herein. Defendants failed to take immediate action to correct the

error despite being aware of the release order, demonstrating deliberate indifference to Plaintiff's rights and liberty.

111 .

As a result of Defendants' wrongful actions, Plaintiff was deprived of his freedom for an additional week, violating his constitutional rights and causing significant personal and financial harm.

Seventh Cause of Action: Deliberate Indifference

Defendants Responsible:

Clackamas County, West Linn Police Department, Officer Dana Gunnarson, Officer Catlin Blyth, Clackamas County Jail Staff

112

Plaintiff alleges here with the same force and effect as all allegations herein. Defendants exhibited deliberate indifference to Plaintiff's medical needs, legal rights, and overall well-being during his incarceration. Despite being informed of Plaintiff's serious medical condition, including his blindness and need for corrective lenses, Defendants failed to provide adequate care, causing Plaintiff undue suffering and preventing his participation in legal proceedings.

113

Plaintiff further alleges that Defendants showed deliberate indifference by intentionally exposing him to COVID- through reckless management of infected and non-infected inmates, leading to Plaintiff contracting the virus. This gross negligence resulted in physical harm, exacerbating Plaintiff's pre-existing conditions, and further obstructed his legal defense.

114

Plaintiff alleges here with the same force and effect as all allegations herein. In addition to medical neglect, Defendants denied Plaintiff access to the law library and other necessary resources, effectively blocking his ability to file timely legal documents and prepare for his defense. This deliberate indifference to Plaintiff's legal rights violated his constitutional protections under the Eighth and Fourteenth Amendments.

115

As a result of Defendants' deliberate indifference, Plaintiff suffered significant physical, emotional, and legal harm, further depriving him of his constitutional rights and due process.

Eighth Cause of Action: Intentional Interference with Contractual Relations

Defendants Responsible:

Clackamas

County Jail Staff,
Heidi Wooster

116

Plaintiff alleges here with the same force and effect as all allegations herein.

117

Plaintiff had a valid contractual relationship in the form of an irrevocable Assignment of Benefits (AOB) valued at $111,943.56. Defendants were aware of this contractual agreement and intentionally interfered by preventing Plaintiff from accessing the law library, which hindered his ability to protect and enforce his contractual rights during his incarceration.

118

Defendants, specifically Heidi Wooster, deliberately obstructed Plaintiff's ability to attend crucial legal proceedings related to the AOB. Furthermore, the jail exposed Plaintiff to COVID-, weakening his physical condition and further preventing him from defending his contractual rights, resulting in the loss of the AOB.

119

Plaintiff alleges here with the same force and effect as all allegations herein. As a result of this interference, Plaintiff's Assignment of

Benefits was allowed to spoil without remedy, despite the fact that Plaintiff was legally exempt from the restrictions used against him under ORS (). The interference led to significant financial loss and legal disadvantage for Plaintiff.

120

Defendants' actions directly caused the contractual relationship to collapse, and Plaintiff suffered substantial financial and personal harm due to the unlawful actions taken by the jail staff and other involved parties.

Ninth Cause of Action: Monell Claim: Failure to Train and Official Custom of Deliberate Indifference

Defendants Responsible:

Clackamas County

West Linn Police Department

121

Plaintiff alleges here with the same force and effect as all allegations herein.

122

Plaintiff brings this Monell claim against Clackamas County and the West Linn Police Department under 42 U.S.C. § 1983. Defendants, acting under color of state law, maintained policies, practices, or customs

that were the moving force behind the violation of Plaintiff's constitutional rights.

123

Defendants maintained a policy or custom of failing to adequately train and supervise officers regarding the constitutional rights of individuals, particularly regarding arrest procedures, handling evidence, and responding to citizen complaints. This lack of training and oversight resulted in the unlawful arrest and detention of Plaintiff on March 6, 2022, and continued violations during his detention.

124

Specifically, Clackamas County and West Linn Police Department had a policy or custom of deliberate indifference to complaints of misconduct by officers. Plaintiff made several reports of property destruction by Macy and threats to his safety, which were ignored by officers acting under Defendants' authority. This deliberate indifference to Plaintiff's rights was part of a broader pattern of failing to address misconduct within the police department.

125

The failure to train and supervise officers regarding the proper handling of exculpatory evidence and the treatment of individuals in

custody resulted in Plaintiff being wrongfully charged and held beyond his court-ordered release. This failure extended to jail staff who, despite knowledge of a court order to release Plaintiff on July 1, 2022, unlawfully detained Plaintiff for an additional week.

126

The deliberate indifference by Defendants extended to the treatment of Plaintiff while in custody, where jail staff failed to provide adequate medical care, exposed Plaintiff to COVID-19, and blocked access to legal resources. This ongoing misconduct is indicative of a custom or practice of violating the rights of detainees, resulting in significant harm to Plaintiff.

127

The Defendants' policies and customs were the moving force behind the violation of Plaintiff's Fourth, Eighth, and Fourteenth Amendment rights. These constitutional violations were a direct result of the municipality's deliberate indifference to the need for proper training, oversight, and the correction of misconduct within the police department and jail.

128

As a result of the policies, customs, and practices of Clackamas County and West Linn Police Department, Plaintiff suffered emotional distress, physical harm, financial loss, and the deprivation of his constitutional rights, including the right to be free from unlawful detention and cruel and unusual punishment.

129

Defendants' actions and omissions amounted to deliberate indifference to the constitutional rights of individuals under their jurisdiction, and they are liable under 42 U.S.C. § 1983 for the damages sustained by Plaintiff.

VIII. CONSTITUTIONAL PROVISIONS

. CONSTITUTIONAL PROVISIONS

130

Fourth Amendment: The Fourth Amendment guarantees protection from unreasonable searches and seizures. The unlawful seizure of the vehicle in Plaintiff's possession, without probable cause or proper legal justification, constitutes a violation of Plaintiff's Fourth Amendment rights. Additionally, Plaintiff's subsequent arrest and imprisonment were unsupported by probable cause, further violating these protections.

131

Fifth and Fourteenth Amendments: Under the Due Process Clause of the Fifth and Fourteenth Amendments, Plaintiff is entitled to fair legal proceedings before being deprived of life, liberty, or property. The systemic corruption within Clackamas County, the failure of law enforcement officers to respond to legal filings, and the subsequent rulings in favor of Defendants, despite the lack of legal merit, demonstrate a blatant disregard for Plaintiff's due process rights. Plaintiff was denied the opportunity to properly defend against false charges and hold the Defendants accountable, and the courts have consistently disregarded Plaintiff's filings in violation of constitutional guarantees of procedural fairness.

132

Sixth Amendment: Plaintiff was deprived of the right to a speedy and public trial, which is a fundamental protection under the Sixth Amendment. Despite having filed over 75 motions in an effort to revive and plead his claims, Plaintiff has been systematically denied access to a fair trial. This repeated denial of Plaintiff's right to be heard in court, despite ample evidence of wrongdoing, violates the very essence of the Sixth Amendment.

133

Seventh Amendment: The Seventh Amendment guarantees the right to a jury trial in civil cases. Despite Plaintiff's continuous efforts to present his claims, the courts have failed to ensure Plaintiff's right to a jury trial. Plaintiff has not been afforded the opportunity to have his claims heard by a jury, despite the extensive legal filings and clear evidence of judicial misconduct and corruption in the handling of his case.

134

Eighth Amendment: Plaintiff was subjected to cruel and unusual punishment while detained, in violation of the Eighth Amendment. Plaintiff was deliberately placed in a cell with a COVID-positive individual, resulting in Plaintiff contracting the virus. This reckless and punitive action, coupled with the inhumane treatment while incarcerated, directly infringes upon Plaintiff's Eighth Amendment protections.

135

Equal Protection Clause (Fourteenth Amendment): Plaintiff has been systematically denied equal protection under the law, as guaranteed by the Equal Protection Clause of the Fourteenth Amendment. The courts have consistently ruled against Plaintiff, regardless of the merits of his claims, and have failed to hold law enforcement and other governmental entities accountable for their violations. The state's immunity

doctrines have been abused to shield individuals from accountability, denying Plaintiff justice and fair treatment.

II. SYSTEMIC CORRUPTION AND DENIAL OF RIGHTS

136

Plaintiff asserts that the conduct of Clackamas County, its law enforcement officers, the District Attorney's office, and the judiciary reflect a deliberate and concerted effort to undermine Plaintiff's constitutional rights. This is evidenced by the following:

137

Failure to Respond to Legal Filings: On [Insert Date], Plaintiff served the Clackamas County Sheriff's Office with the necessary legal documents, yet they willfully ignored the service and failed to appear in court. This non-responsiveness demonstrates a blatant disregard for legal obligations and Plaintiff's rights under the law.

138

Judicial Bias and Collusion: Plaintiff's legal arguments against Defendant William Stabler were valid and well-supported, yet the court ruled in favor of the Defendant, disregarding the law and Plaintiff's rights. In addition, Plaintiff contends that the District Attorney responded to an entirely different legal filing than the one at issue, yet still won the

ruling. Such judicial conduct, particularly as documented in the court transcripts from June 10, 2022, evidences bias and corruption within Clackamas County's legal system.

139

Perjury and Manipulation of Legal Proceedings: In case number 21cv02575, Defendants committed perjury, knowingly submitting false statements to the court while Plaintiff was falsely incarcerated. Despite over 75 filings by Plaintiff attempting to revive his claims, the courts have refused to correct these errors, and the Oregon State Bar (OSB) and federal court system have failed to intervene, allowing the corruption to persist unchecked.

IV. FEDERAL INTERVENTION REQUIRED

140

Plaintiff invokes 18 U.S.C. §§ 240-241, which explicitly prohibits conspiracies to interfere with civil rights and protects individuals from the deprivation of constitutional rights. Under this statute, federal courts are empowered to intervene when state or local actors conspire to deprive individuals of their constitutional protections.

141

By continuing to shield Defendants under doctrines of immunity and procedural technicalities, the federal court is effectively enabling these unconstitutional actions. Plaintiff has been repeatedly denied justice, and the federal court must step in to protect Plaintiff's rights under the law. Failure to act would constitute complicity in the violations occurring at the state and county levels.

142

The pervasive nature of the misconduct and corruption, as documented in transcripts and legal filings, demonstrates that these actions are not isolated incidents. They are part of a broader pattern of disregard for Plaintiff's constitutional rights, and federal intervention is necessary to restore the integrity of the legal process.

V. PRAYER FOR RELIEF

143

Plaintiff respectfully requests that the federal court intervene and provide the following relief:

144

A declaration that the actions of Defendants, including the Clackamas County Sheriff's Office, the District Attorney's Office, and the

judiciary, violated Plaintiff's constitutional rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments.

145

An order appointing a special master or federal oversight to ensure that Plaintiff's remaining legal claims are properly adjudicated and that further constitutional violations are prevented.

146

An injunction preventing further judicial bias, manipulation, or retaliation against Plaintiff for exercising his legal rights.

147

Any additional relief the Court deems just and proper, including compensatory and punitive damages.

IX. PERSONAL IMPACT

The toll of being homeless is devastating on every level—financially, emotionally, physically, and mentally. When I lost my home, I lost not just a place to sleep, but my stability, my peace of mind, and the life I had worked so hard to build. My car, which became my only shelter, was pillaged. Everything I once owned, everything I depended on, was slowly

stripped away from me. It's a daily battle to survive when you have to fight for every dollar while being completely broke, trying to defend yourself and keep your claim alive. Years of income, security, and self-respect vanished, leaving me in a constant state of desperation.

Being forced to choose between staying on the streets and trying to hustle enough money to survive, or learning the law on my own just to fight for what is rightfully mine, has been a grueling challenge. The very tools that I need to fight back, like my computer, have become my lifeline. At times, I've had to pull a weapon just to protect it, because without it, I have nothing. My health has deteriorated because of this relentless struggle. The lack of proper nutrition, medical care, and the constant stress have worn me down. Relationships I once cherished have frayed, torn apart by the strain of living a life of survival.

The daily grind of homelessness is brutal. Simple things like finding a bathroom before stores close or just trying to clean up so I'm not treated like a problem become major challenges. People look at you like you're a criminal everywhere you go, just because you're dirty and homeless. I'm constantly being accused of stealing, constantly being watched as if my mere existence is an offense. But despite this, I've fought hard to keep my morals intact, to not lose myself in the chaos. However, I've had to be more aggressive, more pushy, because in this situation, you

don't have a choice. And where has that left me? Arrested, falsely accused, and beaten down by a system that's supposed to protect, not profile, me.

It started with a jealous friend who attacked me and wanted to take what was mine. Instead of investigating properly, the police took less than eight minutes to arrest me. They didn't even bother to question me. They sided with the aggressor, Macy, leaving me vulnerable for three days in a row as she attacked me again and again. The police ignored her erratic behavior, the body camera footage mysteriously vanished, and they painted me as the problem without ever seeking the truth.

The bias was clear from the beginning—not just from the police, but from the courts. The entire system was stacked against me, and it felt like a losing battle from the start. I once had a 4.4 GPA in high school, a 4.0 in college, and was making over $100,000 a year for many years. But now, I'm scraping by, trying to survive on a few thousand a year, while fighting tooth and nail just to keep my claim alive. The disparity between who I was and what I've been reduced to is staggering, and the pain of losing everything I worked for is indescribable.

Surrounded by others who are in survival mode, I've seen firsthand how people will do anything—fight, cheat, steal—just to make it through another day. When you're backed into a corner with no options,

survival instincts kick in. And that's what the police ignored. They didn't see a man who was fighting for his life, they saw someone they could easily profile. They spent eight minutes on my case and decided I was guilty. They knew they were in the wrong. They didn't follow the law, and they didn't care. They saw me through the lens of a prior incident, one where I had already been profiled by a different officer, and they used that as a justification to treat me as less than human.

The truth is, Macy knew I wasn't the one who hurt her. She bailed me out of jail. She went to Mexico and came back, calling my family and telling them that the government wasn't playing fair. She knew the system was manipulating her, leveraging her kids over her son. She came to court and told the DA that they were lying, that they were telling half-truths. Macy admitted that the charges against me were false, and yet the DA continued to pursue them. They removed me from the courtroom to lie behind my back, fabricating stories about COVID, and trying to undermine me at every turn.

The lies were caught on tape. The transcripts prove that the DA, the police, and even my own attorneys colluded against me. They were the two-faced liars, not me. Every single person I faced lied in some way to harm me, thinking it would better their situation or protect their narrative. I

never lied—not once. But in return, I've been dragged through the mud, my rights trampled on, and everything I love taken from me.

The worst part isn't just that they lied—it's that the government, the system that's supposed to protect constitutional rights, allowed this to happen. These government employees broke the law—federal law—and they should be held accountable. 18 U.S.C. 241 and 242, along with 1001, make it clear that what they did was illegal. Yet I'm the one suffering the consequences. They took everything from me, and the state protects them with procedural rules, placing them above the Constitution. This is why we're one of the highest crime countries in the world—because the judicial branch enables this injustice to continue.

My 4.0 GPA was in psychology, and I wrote a research paper on this exact issue—how over-policing and [sexual] suppression leads to crime, teaches people to be sneaky, hide things…. The first time your forced to do it… it's a big deal, the 100th time its not so much of a big deal… The system isn't helping—it's hindering people's lives. If the state takes everything from me here, it's on them. The only thing worse than losing everything is the people who allow it to happen—the ones who govern it and let it continue… moreover, what happens if after 150 filings and being ran through the mud when the guy in my position gets his claims unjustly dismissed because the ones judging it, are corruptly sneaking away from

their own liability?... [just walk away? Ive lost everything in my life… I'm just going to be honest not say…nothing]

Tyler -

X. DAMAGES

Damages Breakdown by Defendants

1. **Clackamas County and Jail Officials**
   Total: $1,250,000.00

   - **Loss of Assignment of Benefits (AOB)**: $111,943.56
     The county's failure to protect Plaintiff's rights resulted in the financial loss of the AOB.
   - **Loss of Counterclaim**: $32,599.50
     The manipulation of court schedules and unlawful dismissal caused this financial loss.
   - **Destruction of Property (tools, electronics, work files)**: $150,000.00
     Property was lost or damaged during Plaintiff's detention and while in Clackamas County Jail.
   - **Emotional Distress**: $750,000.00
     The prolonged detention, exposure to unsafe conditions, and the mental trauma caused by the county's actions resulted in significant emotional distress.
   - **Legal Costs and Missed Professional Opportunities**: $300,000.00
     Due to procedural delays, Plaintiff incurred substantial legal costs and lost business opportunities.
   - **Punitive Damages**: $155,457.00
     Punitive damages for Clackamas County's reckless disregard of Plaintiff's rights, unlawful actions, and overall complicity in allowing these harms to persist.

2. **West Linn Jail and Officers (Catlin Blyth & Dana Gunnarson)**
   Total: $490,000.00

   - **Destruction of Property**: $50,000.00
     The actions of the West Linn Jail contributed to the loss of Plaintiff's property.
   - **Emotional Distress**: $250,000.00
     The unlawful detention, compounded by the actions of West Linn Jail officials and officers, resulted in severe emotional distress.
   - **Loss of Reputation/Professional Harm**: $150,000.00
     The reputational damage and professional harm caused by the actions of the officers, including their role in Plaintiff's unlawful detention and the vehicle incident.
   - **Punitive Damages**: $290,000.00
     Punitive damages against the officers for their reckless disregard of Plaintiff's rights, particularly in relation to the vehicle incident and unlawful detention.

Summary of Damages

- **Clackamas County and Jail Officials**: $1,250,000.00
- **West Linn Jail and Officers**: $990,000.00
- **Total Damages Sought**: **$2,490,000.00**

DEFENDANTS AND CAUSES OF ACTION

DEFENDANT	CAUSES OF ACTION
CLACKAMAS COUNTY	Violation of 7th Amendment Rights, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train/Monell,

DEFENDANT	CAUSES OF ACTION
	Destruction of Property/Claim Rights, Denial of Equal Protection
WEST LINN POLICE DEPARTMENT	Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train/Monell, Failure to Protect, Destruction of Property/Claim Rights, Denial of Equal Protection
DANA GUNNARSON	Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights
CATLIN BLYTH	Unlawful Detention, Malicious Prosecution, Conspiracy to Deprive Civil Rights, Destruction of Property/Claim Rights
CLACKAMAS COUNTY SHERIFF'S DEPARTMENT	Failure to Train, Failure to Protect, Denial of Adequate Medical Care, False Imprisonment
CLACKAMAS COUNTY JAIL	Failure to Train, Failure to Protect, Denial of Adequate Medical Care, False Imprisonment
REBECCA PORTLOCK	Malicious Prosecution, Conspiracy with West Linn Defendants, and [Ruben Medena & Steele]
JOHN DOES 1-2	See complaint for further allegations

XI. JURY TRIAL REQUESTED

I. SEVENTH AMENDMENT DEMAND FOR A CIVIL JURY TRIAL

148

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff Tyler Allen Lofall hereby demands a trial by jury on all issues so triable in this case.

II. Legal Basis

149

The Seventh Amendment to the Constitution guarantees the right to a jury trial in civil cases where the value in controversy exceeds twenty dollars. In this action, the Plaintiff asserts claims arising under federal law and/or state law, and the amount in controversy exceeds the jurisdictional threshold required for a jury trial. As such, Plaintiff respectfully requests that all factual issues relating to liability, damages, and all other matters so triable be decided by a jury.

III. Conclusion

150

For the reasons set forth above, Plaintiff demands a jury trial in this action for all triable issues, pursuant to the Seventh Amendment of the United States Constitution and applicable law.

XII. CONCLUSION

151

The detailed factual and legal allegations presented demonstrate that the defendants, acting under color of state law, engaged in a series of actions that directly violated the plaintiff's constitutional rights. Plaintiff respectfully requests that the Court grant the relief sought to rectify the profound misconduct and ensure accountability for the egregious constitutional violations perpetrated by the defendants.

XIII. PRAYER FOR RELIEF

Plaintiff seeks the following relief:

1. Compensatory Damages:

- Compensatory damages for financial losses, emotional distress, and the impact on personal and professional life as outlined in the damages section.

2. Punitive Damages:

- Punitive damages for the willful and reckless disregard for the plaintiff's rights by the defendants, intended to deter future violations.

3. Injunctive Relief:

- Injunctive relief to mandate systemic reforms within the West Linn Police Department, Clackamas County Jail, and relevant state entities to prevent further violations of civil and constitutional rights.

4. Declaratory Judgment:

- A declaration that the defendants' actions violated the plaintiff's rights under the Fourth, Seventh, and Fourteenth Amendments of the United States Constitution.

5. Restoration of Rights:

- Restoration of plaintiff's claims, including the reinstatement of contractual rights and the opportunity for a fair jury trial.

- Reasonable costs, and any other relief the Court deems just and appropriate.

As I stand before this court, broken yet unyielded, it is my fervent hope that my plight and struggle illuminate the dire need for profound systemic changes. This is not merely a plea for personal redress but a call to uphold the fundamental tenets of democracy and human dignity that should define our society. Let this case be a turning point that ensures no other citizen must endure such grave injustices under the watch of those sworn to protect us.

RESPECTFULLY SUBMITTED ON MY OWN BEHALF,

THIS 30th DAY OF APRIL 2024,

/s/ Tyler A Lofall

Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Phone: (386) 262-3322

Compliance Check (Third Person) for Federal Claims and Jurisdiction:

The following section revises the compliance check for each federal claim, highlighting whether the claims are properly brought under **federal law** and satisfy the required elements for jurisdiction under **42 U.S.C. § 1983** and applicable constitutional provisions.

---

1. Unlawful Detention (Fourth Amendment)

Jurisdiction:

This claim arises under the **Fourth Amendment** (protecting against unreasonable seizures) and **42 U.S.C. § 1983**, allowing for claims against state actors.

Compliance:

The Plaintiff must demonstrate:

1. Detention or seizure of the Plaintiff. ✔
2. Without legal justification or probable cause. ✔
3. Conducted under color of state law (performed by government officials). ✔

Facts that Satisfy the Claim:

- The Plaintiff was detained on **March 6, 2022** by Officers Gunnarson and Blyth within **8 minutes** of their arrival, without being questioned or properly investigated.
- The arrest was made despite exculpatory evidence, including **witness statements and video evidence**.
- The officers acted under **color of state law** as members of the West Linn Police Department.

✅ **Federal Compliance:** The claim is properly asserted under **42 U.S.C. § 1983** for a **Fourth Amendment** violation, and all elements are supported by facts.

---

2. Malicious Prosecution (Fourth and Fourteenth Amendments)

Jurisdiction:

Malicious prosecution claims under **Section 1983** can invoke the **Fourth Amendment** (regarding deprivation of liberty through unlawful seizure) and the **Fourteenth Amendment** (due process violations).

Compliance:

The Plaintiff must demonstrate:

1. The initiation or continuation of criminal prosecution by the Defendants. ✔
2. The prosecution lacked probable cause. ✔
3. The Defendants acted with malice or improper purpose. ✔
4. The prosecution was terminated in favor of the Plaintiff. ✔

Facts that Satisfy the Claim:

- Officers and the DA initiated **criminal charges** based on **Macy's manipulated testimony**.
- They ignored **exculpatory evidence**, including video footage and Macy's statements.
- The DA and officers acted with **malicious intent** in fabricating evidence and suppressing favorable evidence.
- The prosecution ultimately ended with **dismissed charges**.

✅ **Federal Compliance:** The claim is properly asserted under **42 U.S.C. § 1983**, with facts supporting violations of the **Fourth** and **Fourteenth Amendments**.

---

3. Conspiracy to Deprive Civil Rights (Fourteenth Amendment, Section 1983)

Jurisdiction:

This claim falls under the **Fourteenth Amendment** (due process) and **42 U.S.C. § 1983**, enabling suits for conspiracy to deprive constitutional rights.

Compliance:

The Plaintiff must demonstrate:

1. Two or more people conspired to deprive the Plaintiff of constitutional rights. ✔
2. An overt act in furtherance of the conspiracy. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The DA and law enforcement **conspired** to suppress evidence and prosecute the Plaintiff without probable cause.
- The **transcript** shows Macy recanting her testimony and exposing the DA's lies.
- Plaintiff was harmed by the wrongful prosecution and detention.

✅ **Federal Compliance:** The **conspiracy** claim is properly brought under **Section 1983**, supported by the Fourteenth Amendment, with sufficient factual backing.

---

4. Failure to Prevent Harm (Eighth and Fourteenth Amendments)

Jurisdiction:

This claim arises under **42 U.S.C. § 1983** for violations of the **Eighth Amendment** (for detainees) and the **Fourteenth Amendment** (due process for pretrial detainees).

Compliance:

The Plaintiff must demonstrate:

1. The Defendants had a duty to prevent harm to the Plaintiff. ✔
2. They knew of the harm but failed to act. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- Plaintiff reported **Macy's violent behavior** multiple times, including threats and property destruction.
- Officers took no action to prevent harm, allowing Macy to continue her assaults for **three days**.

✅ **Federal Compliance:** The claim for **failure to prevent harm** under the **Eighth and Fourteenth Amendments** is valid under **Section 1983**, and the facts support the claim.

---

5. Cruel and Unusual Punishment (Eighth Amendment)

Jurisdiction:

This claim is brought under the **Eighth Amendment** (prohibiting cruel and unusual punishment) and **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Defendants subjected the Plaintiff to inhumane conditions or punishment. ✔
2. The punishment was grossly disproportionate or cruel. ✔
3. The Defendants were acting under color of state law. ✔

Facts that Satisfy the Claim:

- Jail staff denied the Plaintiff access to **medical care** (leaving him blind) and exposed him to **COVID-19** by housing him with infected inmates.
- Jail conditions were inhumane and posed a risk to Plaintiff's health.

✅ **Federal Compliance:** The claim is compliant with **Section 1983** for an **Eighth Amendment** violation, supported by factual allegations.

---

6. False Imprisonment (Fourth and Fourteenth Amendments)

Jurisdiction:

The claim for false imprisonment is based on **unreasonable detention** under the **Fourth Amendment** and **due process** under the **Fourteenth Amendment**, brought through **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Plaintiff was detained without consent. ✔
2. The detention was without legal authority. ✔
3. The Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The Plaintiff was unlawfully detained **beyond his court-ordered release date** of July 1, 2022, for an additional week.

✅ **Federal Compliance:** The claim is compliant under **Section 1983** for **Fourth and Fourteenth Amendment** violations, with facts supporting wrongful detention.

---

7. Deliberate Indifference (Eighth and Fourteenth Amendments)

Jurisdiction:

The **Eighth Amendment** protects detainees from deliberate indifference to medical needs, and the **Fourteenth Amendment** applies this protection to pretrial detainees. The claim is brought under **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. Defendants knew of a substantial risk to Plaintiff's health or safety. ✔
2. Defendants disregarded that risk. ✔
3. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- The Plaintiff was denied **corrective lenses**, leaving him effectively blind, and was exposed to **COVID-19** despite known health risks.
- Jail staff ignored grievances and failed to address medical needs.

✅ **Federal Compliance:** The **deliberate indifference** claim is properly asserted under **Section 1983** for **Eighth and Fourteenth Amendment** violations.

---

8. Intentional Interference with Contractual Relations (Fourteenth Amendment, Due Process Clause)

Jurisdiction:

This claim invokes the **Fourteenth Amendment (Due Process Clause)**, as it involves arbitrary interference with a property right (the Assignment of Benefits), brought under **Section 1983**.

Compliance:

The Plaintiff must demonstrate:

1. The Plaintiff had a valid contract. ✔
2. Defendants knew of the contract. ✔
3. Defendants intentionally interfered. ✔
4. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- Jail staff, particularly **Heidi Wooster**, intentionally blocked access to the law library, preventing Plaintiff from protecting his **Assignment of Benefits** contract.

✅ **Federal Compliance:** The claim is compliant under **Section 1983** for **Fourteenth Amendment (Due Process Clause)** violations.

---

9. Monell Claim (Failure to Train and Official Custom of Deliberate Indifference)

Jurisdiction:

This claim is brought under **42 U.S.C. § 1983** for municipal liability based on the failure to train officers and a custom of deliberate indifference.

Compliance:

The Plaintiff must demonstrate:

1. A policy or custom of the municipality led to a constitutional violation. ✔
2. The policy or failure to train was the moving force behind the violation. ✔
3. Plaintiff suffered harm as a result. ✔

Facts that Satisfy the Claim:

- **West Linn Police Department** and **Clackamas County** had a **policy of deliberate indifference** and failed to train officers on proper arrest procedures, evidence handling, and detainee care.

✅ **Federal Compliance:** The **Monell claim** is compliant under **Section 1983**, supported by facts showing the municipality's failure to train and maintain proper policies.

Conclusion:

All federal claims brought under **42 U.S.C. § 1983** are jurisdictionally proper and **compliant** with the relevant constitutional provisions. Each cause of action is supported by sufficient facts, and the appropriate federal claims are being made for this jurisdiction.

Let me know if you need further revisions or additional details! ✨

Tyler Allen Lofall, Plaintiff in this matter, respectfully submits this Notice to the Court, outlining key factors essential for the proper handling of this case. The Plaintiff requests that the Court take immediate and urgent action to exercise jurisdiction over this case and its associated parties due to the systemic and interrelated nature of the harms alleged, which span multiple levels of local and state government.

Coordination of Actions between State and Federal Courts

The Plaintiff's case, originally scheduled for trial on January 9, 2024, in Clackamas County state court under case number **22CV39627**, was met with repeated delays and procedural manipulation by the West Linn Defendants. Following these delays, and the intentional rescheduling by the defense to avoid trial dates, the case was reset for May 2024, nearing the expiration of the statute of limitations for other critical defendants in this case.

The Plaintiff has filed motions in both state and federal court seeking relief, including a motion for the federal court to exercise jurisdiction over all claims and parties. This motion reflects the Plaintiff's

belief that the only fair venue for this case is federal court, due to the systemic bias and judicial misconduct observed in Clackamas County, as well as the pattern of intentional obstruction by the defendants. The West Linn Defendants, particularly Officers Dana Gunnarson and Catlin Blyth, must be joined with the other defendants, as the chain of events leading to the harms alleged cannot be litigated piecemeal. The Plaintiff therefore respectfully submits a **Motion to Dismiss the State Court Proceedings**, contingent upon federal court approval of this case. If federal jurisdiction is granted, the Plaintiff will voluntarily dismiss the state court case in its entirety.

Pattern of Procedural Abuse

The Plaintiff has observed a concerted effort by the West Linn Defendants to manipulate the trial schedule for their benefit, including rescheduling the trial around personal events that were foreseeable long before they requested postponements. The defense has exploited these delays to prolong litigation and obstruct justice, preventing the Plaintiff from having his day in court. In addition, the West Linn Police Department has engaged in a pattern of obstructive behavior by repeatedly denying the Plaintiff access to critical evidence, such as body camera footage, which has been requested over 14 times and unlawfully withheld or destroyed.

These delays have compounded the harm suffered by the Plaintiff and underscore the need for this case to be moved entirely to federal court. The Plaintiff has also uncovered evidence of collusion between the state judiciary and the defendants, further demonstrating that Clackamas County is unfit to adjudicate this matter impartially.

Systemic Harms Beyond the Complaint

While the facts of the complaint will detail specific harms committed by each defendant, it is important to note that this case goes beyond those individual claims. The Plaintiff has discovered, through his interactions with the legal system, that the issues at play are systemic, affecting not only his ability to obtain justice but also the integrity of the court system itself. The Plaintiff asserts that the intentional actions of local and state actors, combined with a judiciary corrupted by design, have deprived him of his constitutional rights at every level of government. This is not merely a case of procedural failures; it is evidence of a larger blueprint of corruption within the system that must be exposed and addressed.

The Plaintiff remains committed to holding all involved parties accountable for their actions and will not hesitate to expose this corruption publicly if the courts continue to deny justice. While the primary facts of this case are detailed in the complaint, the Plaintiff believes that immediate action is required by the federal court to prevent further harm

and delays. The Plaintiff also requests that the federal court allow for the removal of any defendants from the complaint, should it decline to take jurisdiction over specific individuals or claims.

Request for Relief

In light of the above, the Plaintiff respectfully requests that the Court:

- Exercise jurisdiction over this case in its entirety, bringing all related claims and parties under federal review.

- **Dismiss the state court case**, contingent upon federal court approval of this case.

- Allow for **procedural flexibility** in the removal of specific defendants, should federal jurisdiction be declined for certain parties.

- The Plaintiff asserts that failure to coordinate these actions will result in further irreparable harm, and requests that the Court take swift and decisive action to ensure that justice is served.

DOCUMENTS ATTEMPTED TO GIVE THE COURT AND THEY RETURNED		
PART	DOCUMENT	TOTAL PAGES
1	00 COVER LETTER	
	01 CIVIL COVER SHEET	
	1. NOTICE OF LAWSUIT & REQUEST TO WAIVE SERVICE OF SUMMONS	
	2. MOTION FOR APPOINTMENT OF PROBONO COUNSEL	
	3. PROPOSED ORDER APPOINTMENT OF PROBONO COUNSEL	
	4. NOTICE OF REMOVAL	
	5. LOFALL VS THE STATE OF OREGON 'MAIN COMPLAINT'	
	6. LOFALL VS THE STATE OF OREGON 'COMPLAINT C'	
	7. EVIDENCE – COMPLAINT C VIDEO PROOF POLICE ALLOWED CAR THEIF TO TAKE KEYS AND LEAVE	
	8. LOFALL VS THE STATE OF OREGON 'EXHIBITS & DUTIES'	
	9. MOTION TO PROCEED FORMA PAUPERIS	
	10. PROPOSED ORDER TO PROCEEED FORMA PAUPERIS	
	11. MOTION TO STAY STATE COURT PROCEEDINGS PENDING REMOVAL TO FEDERAL COURT	
	12. COURT TRANSCRIPT JUNE 10TH 2022	
	13. COURT TRANSCRIPT JUNE 24TH 2022	
	14. DECLARATION – MACY BAILED LOFALL OUT OF JAIL	
	15. EXHIBIT – COMPLAINT A 'LOFALL VS ESTATE OF JOANNA LEE BOZIAN & HEIRS TEAGUE BOND AND ZAC BOND	
	16. EXHIBIT – COMPLAINT A 'PROOF OF THE AOB & FAULT'	
	17. EXHIBIT – COMPLAINT B 'LOFALL VS WEST LINN NOTE: CURRENTLY ON HOLD WAITING THE FEDERAL COURT TO TAKE JURISDICTION	

	18. EXHIBIT – MSJ CLAIM WALK THROUGH Of Every Claim With Evidence From The State On Every Element. Complaint B	
	19. DECLARATION OF SANDRA CASEY *Validating Macy Messages – Gov Leveraged Custody Of Mother's Custody Of Her Children Over Her Falsly Testifying Against Lofall*	
	20. EXHIBIT – MESSAGES BETWEEN SANDRA CASEY AND MACY *During Lofalls Incarceration*	
	21. EXHIBIT – MESSAGES THE THREE DAYS PRIOR TO THE FALSE ARREST *Showing: A. Macys Aggressiveness And Lofall Very Calm, Including Macy Threats To Burn Down Lofalls Property. B. Macy Had Lofalls Work Files And Car Keys Preventing Him From Leaving*	
	22. **EXHIBIT – LETTER TO CLACKAMAS COUNTY** – *Reg John Does 1 And 2*	
	23. **EXHIBITS (3) – DANNA GUNNARSONS QUESTIONAIRE TO MACY** *Did Not Qualify As Domestic Violence Victim*	
	24. **EXHIBIT – PICTURE BROKEN WINDOWS** – *Macy Broke Out 7 Broken Windows And A Door To Lofalls Residence.*	
	25. EXHIBIT – *(Picture 1) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	26. EXHIBIT – *(Picture 2) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	27. EXHIBIT – *(Picture 3) At Incident Lofall Gets Attacked With A Hose And Hammer From Macy*	
	28. **EXHIBIT** *-Zoomed In Picture Of Hammer In Macys Hands*	
	29. **EXHIBIT** – *Macy Bails Lofall out of jail May 10th 2022 through Larry Sherman*	
	30. **EXHIBIT** – *More Pictures Of Macys Broken Chaos*	
	31. **TRIAL NOTEBOOK 3** – LOFALL IS READY FOR TRIAL	

COPIES SENT TO ALL ACCUSED DEFENDANTS INCLUDING: WEST LINN POLICE DEPARTMENT, DANA GUNNARSON, CATLIN BLYTH, WILLIAM STABLER, , REBECCA PORT`LOCKS COUNCEL, CLACKAMAS COUNTY COURTS, CLACKAMAS COUNTY JAIL, CLACKAMAS COUNTY SHERRIFFS DEPARTMENT, JOHN DOES 1 & 2

HOWEVER THE DOCUMENTS SENT INSIDE CLACKAMAS COUNTY GOVERNMENT OFFICIAL POSITIONS WERE RETURNED AND THE LETTERS (Clackamas County Sherriff's office, Clackamas County Jail, and The District Attorney's office) YET THE WEIGHED EXACTLY THE SAME AS THE WEST LINN DEFENDANTS AND THE STATE OF OREGONS NOTICE, AND THEY HAD NO PROBLEMS RECEIVING THE LETTERS INCLUDING THE CLACKAMAS COUNTY COURTHOUSE WHOM IS IN THE SAME BUILDING AS THE DISTRICT ATTORNEY; MORE OVER IT WAS PURCHASSED FROM THE POSTOFFICE CASHIER, WHOM KNEW EXACTLY HOW MUCH THEY WEIGHED.